

IN THE UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON

Plaintiff,

V.

**Amentum Government Services Parent
Holdings LLC, CLARENCE XANDER,
JANICE HUGHES, HEATHER GUNN,
DAKOTA THOMAS, ELIAS VELASQUEZ
And USEF ABDUL-JAMI,

Defendants.**

C.A. No.: 3:25-cv-01447-MCR-ZCB

**PLAINTIFF'S RESPONSE IN OPPOSITION TO DEFENDANTS' MOTION TO
DISMISS SIXTH AMENDED COMPLAINT**

INTRODUCTION

Plaintiff Debra Nelson, proceeding pro se, respectfully files this Response in Opposition to Defendants' Motion to Dismiss the Sixth Amended Complaint (Doc. 51). Contrary to Defendants' arguments, Plaintiff's Sixth Amended Complaint states plausible claims for relief under federal and state law that are sufficient to survive a Rule 12(b)(6) challenge. The complaint provides Defendants with fair notice of the claims and the grounds upon which they rest, supported by specific factual allegations. Furthermore, Plaintiff has now fully satisfied all administrative exhaustion requirements for her retaliatory termination claim by filing a second Charge of Discrimination with the EEOC on March 3, 2026, and receiving a Notice of Right to Sue on March 6, 2026. For these reasons, the Motion to Dismiss should be denied.

ARGUMENT

I. PLAINTIFF'S TITLE VII GENDER DISCRIMINATION CLAIM (COUNT I) STATES A PLAUSIBLE CLAIM

A. Plaintiff Has Alleged Actionable Adverse Employment Actions Under *Muldrow v. City of St. Louis*, 601 U.S. 346 (2024)

1. Defendants incorrectly argue that Plaintiff failed to plead an actionable adverse employment action. The Supreme Court in *Muldrow* recently clarified the standard, rejecting any requirement that a Title VII plaintiff must prove "significant," "material," or "substantial" harm. An employee need only show that the challenged action resulted in "some harm" with respect to an identifiable term or condition of employment. 601 U.S. at 354-55.
2. Plaintiff has alleged multiple concrete harms that meet this standard:
 - **Loss of a dedicated NDI workspace** (Doc. 47, ¶ 41), forcing her to work in rotating locations, which is an inconvenient transfer actionable under *Muldrow*;
 - **Unauthorized modification of time records by Business Manager Heather Gunn**, who accessed Plaintiff's timesheet on May 30, 2025, without authorization, altered Plaintiff's recorded hours, and signed the timesheet without Plaintiff's consent—a retaliatory act intended to fabricate evidence that Plaintiff had engaged in time theft, which Plaintiff only discovered when she regained access to the Costpoint system and had to request Payroll reopen the timesheet to correct the unauthorized alterations;
 - **Receiving a written reprimand** for a "no-call-no-show" on August 6, 2025, based on a leave request that had been previously approved;
 - **Being subjected to a fabricated accusation** of unprofessional conduct; and
 - **The ultimate adverse action of termination** on October 29, 2025.
3. Ultimate employment decisions such as termination conclusively demonstrate "some harm." *Burlington Northern & Santa Fe Railway Co. v. White*, 548 U.S. 53, 68 (2006).

B. Plaintiff Has Alleged Gender-Based Discriminatory Motive

1. Plaintiff has pleaded sufficient facts to support an inference of a discriminatory, gender-based motive. Plaintiff alleges that Site Manager Clarence Xander used gender-coded language, describing her as "aggressive" and having an "attitude" in response to her raising legitimate technical and safety violations. (Doc. 47, ¶ 20).
2. Plaintiff identifies a similarly situated male comparator, Yusef Abdul-Jami, who was not subjected to equivalent scrutiny, character attacks, or discipline despite documented safety and performance violations. (Doc. 47, ¶¶ 40, 44).
3. Further evidencing disparate treatment, Plaintiff was specifically instructed by management not to communicate with Mr. Abdul-Jami, while he faced no such restriction, effectively silencing her. (Doc. 47, ¶ 18).
4. These allegations, when accepted as true at the pleading stage, permit the reasonable inference that the adverse actions taken against Plaintiff were motivated by her gender, satisfying the pleading standard. *See Lewis v. City of Union City, Ga.*, 918 F.3d 1213, 1220-21 (11th Cir. 2019).

II. PLAINTIFF'S RETALIATION CLAIM (COUNT II) STATES A PLAUSIBLE CLAIM

A. Plaintiff Has Exhausted Administrative Remedies for Retaliatory Termination

1. Defendants' central argument for dismissing the retaliation claim is that Plaintiff failed to exhaust administrative remedies for her October 29, 2025 termination. This defect has been cured. On **March 3, 2026**, Plaintiff filed a second EEOC Charge of Discrimination (No. 510-2026-05627) specifically alleging retaliatory termination.
2. On **March 6, 2026**, the EEOC issued a Notice of Right to Sue for this second charge, which expressly authorizes litigation of the retaliatory termination claim. A true and correct copy of this Notice is attached hereto as **Exhibit A**.
3. The Eleventh Circuit has held that when a court considers a motion to dismiss for failure to exhaust, it "must assure that the plaintiff has fair notice of his opportunity to develop a

record." *Bryant v. Rich*, 530 F.3d 1368, 1376 n.14 (11th Cir. 2008). Defects in exhaustion are curable, often through an amended pleading that incorporates the subsequently-issued Right-to-Sue notice. *See Tillery v. U.S. Dep't of Homeland Sec.*, 402 F. App'x 421, 425-26 (11th Cir. 2010).

4. Indeed, courts have permitted post-suit amendments to cure exhaustion deficiencies. *See, e.g., Oubichon v. N. Am. Copps. Indus.*, 527 F. App'x 714, 716 (5th Cir. 2013). Plaintiff has now fulfilled this requirement.

B. Plaintiff Engaged in Statutorily Protected Activity

1. Plaintiff alleges multiple instances of statutorily protected activity:
 - Filing EEOC Charge No. 510-2025-08373 on August 14, 2025. (Doc. 47, ¶ 12).
 - Reporting safety, quality, and compliance violations to management in May 2025, which she reasonably believed constituted unlawful employment practices. (Doc. 47, ¶ 36).
 - Providing sworn deposition testimony on October 28, 2025, in a related federal civil rights lawsuit describing discriminatory conduct. (Doc. 47, ¶ 36).
2. Participation in a proceeding under Title VII, which includes providing deposition testimony in a related discrimination lawsuit, is quintessential protected activity. *See Nichols v. Trs. of the Univ. of Pa.*, 435 F.3d 467, 471-72 (3d Cir. 2006). Opposing discriminatory practices through sworn testimony constitutes protected opposition activity. *Chen v. Del. State Univ.*, No. 1:17-cv-160-WJM, 2017 U.S. Dist. LEXIS 216758, at *16 (D. Del. Dec. 27, 2017).

C. Plaintiff Alleged Materially Adverse Employment Actions

1. As alleged in Count II, Plaintiff suffered materially adverse actions, including written warnings and, most significantly, her termination on October 29, 2025, which is the ultimate adverse employment action.

2. A written reprimand that is placed in a personnel file and can affect future employment opportunities is sufficient to dissuade a reasonable worker from making a charge of discrimination. *Burlington N. & Santa Fe Ry. Co. v. White*, 548 U.S. 53, 68 (2006).

D. Temporal Proximity Establishes Causal Connection

1. The causal connection between Plaintiff's protected activity and her termination is overwhelmingly strong. Plaintiff was terminated **less than 24 hours** after she provided sworn deposition testimony against Defendants' interests. The deposition occurred on October 28, 2025, and the termination letter was issued the very next day, October 29, 2025, at 3:06 p.m. (Doc. 47, ¶ 28).
2. This "extreme temporal proximity" is more than sufficient to support a strong inference of causation at the pleading stage. *See Clark Cty. Sch. Dist. v. Breeden*, 532 U.S. 268, 273-74 (2001).

III. PLAINTIFF'S HOSTILE WORK ENVIRONMENT CLAIM (COUNT III) STATES A PLAUSIBLE CLAIM

A. Plaintiff Alleged Severe and Pervasive Harassment

1. Defendants mischaracterize the allegations as isolated incidents. Plaintiff alleges a pattern of harassing conduct occurring over several months:
 - Supervisor Velasquez subjected Plaintiff to a profane verbal assault in front of her male peers (May 28, 2025). (Doc. 47, ¶ 16).
 - Site Manager Xander repeatedly made false accusations that Plaintiff also cursed and then "gaslighted" her by refusing to provide details and stating her inquiries "didn't matter." (Doc. 47, ¶¶ 19-20).
 - Management isolated her by removing the dedicated NDI workspace during the week of August 4–8, 2025. (Doc. 47, ¶ 41).
 - Management fabricated an accusation of unprofessional conduct against her. (Doc. 47, ¶ 24).

- **Co-worker Yusef Abdul-Jami made a false entry in the turnover log** on August 4, 2025, claiming that an eddy current inspection cable Plaintiff had reported as defective was "functioning properly before and after" Plaintiff used it—a false statement designed to impugn Plaintiff's technical competence and professional reputation as an NDI Technician. This falsified log entry suggested Plaintiff did not know how to perform her duties, undermining her credibility and professional standing, particularly given that the cable was in fact defective and had been verified as such by Plaintiff using multiple probes.
2. To be actionable, harassment must be "sufficiently severe or pervasive to alter the terms and conditions of employment." *Miller v. Kenworth of Dothan, Inc.*, 277 F.3d 1269, 1275 (11th Cir. 2002). The combination of public verbal abuse, repeated false accusations, physical isolation, and fabricated discipline, viewed collectively, plausibly meets this standard.

B. The Harassment Was Based on Gender

1. Harassment need not be of a sexual nature to be actionable; it must only be based on gender. *See Mendoza v. Borden, Inc.*, 195 F.3d 1238, 1245 (11th Cir. 1999).
2. Applying gender-coded stereotypes such as "aggressive" or "attitude" to a female employee who is raising technical safety reports—while not applying such labels to male employees engaging in similar conduct—is a classic example of harassment based on gender.

IV. PLAINTIFF'S DEFAMATION CLAIM (COUNT IV) STATES A PLAUSIBLE CLAIM

A. Plaintiff Alleged Publication to Third Parties

1. Plaintiff alleges that Defendants Hughes and Thomas circulated false written memoranda to "Amentum management." This plausibly includes corporate-level managers who were outside the immediate supervisory chain and had no direct, legitimate interest in the matter.

2. Plaintiff further alleges that these false statements were communicated to "coworkers" and were placed in her permanent personnel file.
3. While Florida law recognizes a qualified privilege for intracorporate communications, that privilege is not absolute. Publication to corporate managers without a direct interest in the matter constitutes publication to a third party. *See Hoch v. Loren*, 273 So. 3d 56, 58 (Fla. 4th DCA 2019).
4. Crucially, Plaintiff has alleged that Defendants acted with **actual malice** and a reckless disregard for the truth. Such allegations, if proven, defeat any qualified privilege at the outset.

V. PLAINTIFF'S IIED CLAIM (COUNT V) STATES A PLAUSIBLE CLAIM

A. The Alleged Conduct Meets the "Outrageous Conduct" Standard

1. While Florida's standard for IIED is high, it is not insurmountable. Conduct is outrageous where it is "so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency." *Metro. Life Ins. Co. v. McCarson*, 467 So. 2d 277, 278–79 (Fla. 1985).
2. The coordinated fabrication of disciplinary records and the use of corporate power to terminate an employee in immediate retaliation for her providing sworn testimony in a federal civil rights case is not a "mere offensive utterance" or a simple workplace dispute. It is an abuse of power intended to intimidate a witness and obstruct justice. Such conduct, particularly the retaliatory termination within 24 hours of federal testimony, plausibly rises to the level of outrageousness. *See De La Campa v. Grifols Am., Inc.*, 819 So. 2d 940, 943 (Fla. 3d DCA 2002).

VI. PLAINTIFF'S CIVIL CONSPIRACY CLAIM (COUNT VI) STATES A PLAUSIBLE CLAIM

A. Plaintiff Has Adequately Alleged an Agreement

1. A conspiracy can be inferred from the nature of the acts done, the relationship of the parties, and the interests of the alleged conspirators. Plaintiff alleges specific, coordinated acts from which an agreement can be plausibly inferred: the unified concealment of safety violations to protect Abdul-Jami, the consistent use of gender-based mischaracterizations to discredit Plaintiff, and the coordinated manipulation of disciplinary procedures. Parallel action, coupled with these factual allegations, is sufficient at the pleading stage. *See Eagletech Commc'ns, Inc. v. Bryn Mawr Inv. Grp., Inc.*, 79 So. 3d 855 (Fla. 4th DCA 2012).

B. Intracorporate Conspiracy Doctrine Is Not Applicable at This Stage

1. The intracorporate conspiracy doctrine is an affirmative defense. It can be overcome by allegations that employees acted outside the scope of their employment for personal, malicious, or criminal motives. *See Dickerson v. Alachua Cnty. Comm'n*, 200 F.3d 761, 767 (11th Cir. 2000).
2. Plaintiff has specifically alleged that Defendants acted outside the normal scope of their employment by concealing federal safety violations and fabricating records for the unlawful purpose of retaliation. This is sufficient to overcome the doctrine at the motion to dismiss stage.

VII. PLAINTIFF'S NEGLIGENT SUPERVISION CLAIM (COUNT VII) STATES A PLAUSIBLE CLAIM

A. Plaintiff Has Identified an Underlying Tort

1. A claim for negligent supervision requires an underlying tort committed by an employee. Plaintiff has pleaded several underlying torts, including defamation, intentional infliction of emotional distress, and the creation of a hostile work environment.
2. Plaintiff alleges that Amentum had a duty to supervise its employees, that it breached this duty by failing to investigate Plaintiff's numerous reports, failing to correct documented safety violations, and failing to discipline supervisors for their abusive and retaliatory conduct, and that this breach was the proximate cause of her injuries. This is sufficient to state a claim.

**VIII. PLAINTIFF'S FLORIDA WHISTLEBLOWER ACT CLAIM (COUNT VIII)
STATES A PLAUSIBLE CLAIM**

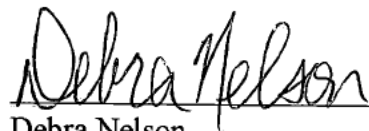
A. Plaintiff Objected to Actual Violations of Law

1. Defendants incorrectly argue that Plaintiff did not object to an actual violation of law. Plaintiff alleges she objected to specific violations of **FAA safety regulations** regarding non-compliant process control requirements for penetrant and ultrasonic NDI methods for aircraft inspection and violations of **NDI Inspection requirements** for non-compliant equipment.
2. These are not generalized workplace grievances; they are objections to practices that violate specific, identifiable laws, rules, or regulations, which is precisely what Fla. Stat. § 448.102(3) protects.

CONCLUSION

For the foregoing reasons, Plaintiff has pleaded plausible claims for relief in her Sixth Amended Complaint, and the administrative exhaustion requirement for her retaliatory termination claim has been satisfied. Plaintiff respectfully requests that this Court **DENY** Defendants' Motion to Dismiss in its entirety. In the alternative, should the Court find any deficiency, Plaintiff requests leave to file the Seventh Amended Complaint, which incorporates the newly issued EEOC Notice of Right to Sue and further supplements the factual allegations to cure any remaining issues.

Respectfully submitted 13th of March, 2026,


Debra Nelson
Plaintiff, Pro Se



CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing **Plaintiff's Response in Opposition to Defendants' Motion to Dismiss Sixth Amended Complaint** was served upon counsel for Defendants by email addressed as follows:

Lindsay D. Swiger

Zackary A Blanton

Jackson Lewis P.C.

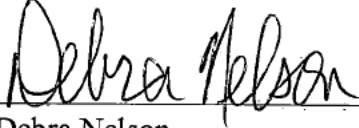
501 Riverside Avenue, Suite 902

Jacksonville, FL 32202

Email: Lindsay.Swiger@jacksonlewis.com

Zackary.Blanton@jacksonlewis.com

Respectfully submitted 13th of March 2026,



Debra Nelson

Plaintiff, Pro Se

